

Table 3.4 Sources of the Constitution at a Glance

Sources	Features Borrowed
1. Government of India Act of 1935	Federal Scheme, Office of governor, Judiciary, Public Service Commissions, Emergency provisions and administrative details.
2. British Constitution	Parliamentary government, Rule of Law, legislative procedure, single citizenship, cabinet system, prerogative writs, parliamentary privileges and bicameralism.
3. US Constitution	Fundamental rights, independence of judiciary, judicial review, impeachment of the president, removal of Supreme Court and high court judges and post of vice-president.
4. Irish Constitution	Directive Principles of State Policy, nomination of members to Rajya Sabha and method of election of president.
5. Canadian Constitution	Federation with a strong Centre, vesting of residuary powers in the Centre, appointment of state governors by the Centre, and advisory jurisdiction of the Supreme Court.
6. Australian Constitution	Concurrent List, freedom of trade, commerce and inter-course, and joint sitting of the two Houses of Parliament.
7. Weimar Constitution of Germany	Suspension of Fundamental Rights during Emergency.
8. Soviet Constitution (USSR, now Russia)	Fundamental duties and the ideal of justice (social economic and political) in the Preamble.
9. French Constitution	Republic and the ideals of liberty, equality and fraternity in the Preamble.
10. South African Constitution	Procedure for amendment of the Constitution and election of members of Rajya Sabha.
11. Japanese Constitution	Procedure established by Law.

Table above from Laxmikanth book tells us the features borrowed from different Constitutions, but remembering all this is tough ☹

So let us use some tricks or stories to remember ☺

1. Features borrowed from Government of India Act, 1935

Federal Scheme, Office of governor, Judiciary, Public Service Commissions,

Emergency provisions and administrative details.

Remember this story:

Why are we preparing for UPSC? For working in GOI

As soon as GOI, 1935 → imagine that you preparing for UPSC → After cracking IAS → we go to Mussoorie (IAS academy) → which is full of FOG → if we JUMP with joy here and there → we will land into EMERGENCY (as less visibility in fog)

GOI → UPSC → IAS → Mussoorie (FOG) → JUMP with joy → land into Emergency

1. GOI = GOI Act 1935

2. UPSC + IAS = UPSC and Administrative details
3. Mussorie (FOG) = Federal provisions and Office of Governor
4. JUMP = Judiciary
5. EMERGENCY = Emergency provisions

2. Features borrowed from British Constitution:

Parliamentary government, Rule of Law, legislative procedure, single citizenship, cabinet system, prerogative writs, parliamentary privileges and bicameralism.

Remember this story:

As soon as we think of British, we remember that they colonized India and exploited us

British colonized India → exploited Indian Citizens → made rules and laws → they built Parliament building → they made 2 Cabins for Upper House and Lower House → they enjoyed all privileges

British → 1. Single citizenship → 2. rule of law → 3. Parliamentary system → 4. Cabinet system → 5. Bicameralism → 6. Parliamentary privileges

3. Features borrowed from US Constitution:

Fundamental rights, independence of judiciary, judicial review, impeachment of the president, removal of Supreme Court and high court judges and post of vice-president.

Remember this Story:

- Everyone wants to go to US or Las Vegas → as it guarantees full freedom, independence and rights to everyone
- US is powerful country → It doesn't even mind to remove SC and HC judges, even President and Vice President

US → Guarantees Fundamental Rights → Independence to everyone (including Judiciary) → Removes SC and HC judges → removes President and Vice President also

4. Features borrowed from Irish Constitution:

Directive Principles of State Policy, nomination of members to Rajya Sabha and method of election of president.

Remember this Story:

Ireland is one among the most peaceful countries in the world → because they follow some principles in life → they respect elders in the House

Ireland → Peaceful country → follows principles → respects elders in House

Ireland → 1. DPSP (Directive Principles of State Policy) → 2. Nomination of members to Rajya Sabha/House of Elders → 3. Method of election of President

5. Features borrowed from Germany: Weimar Constitution of Germany

Suspension of Fundamental Rights during Emergency.

Remember this Story:

You might have heard of history of the Jews in Nazi Germany or about Hitler

Remember it like this → In Germany → Hitler wanted to kill all Jews → so FRs were suspended

6. Features borrowed from Japanese Constitution

Procedure established by Law

Remember this Story:

Japanese are very hardworking and disciplined → they don't break the rules/laws → they follow the procedures sincerely

Japanese → Hardworking and disciplined → follows procedure estd. by law

7. Canadian Constitution

Federation with a strong Centre, vesting of residuary powers in the Centre, appointment of state governors by the Centre, and advisory jurisdiction of the Supreme Court.

Remember this Trick:

Whenever you see an option/statement in question defining "strong Centre" or "by Centre" → directly tick "C for Canada"

C for Canada → C for Centre → Strong Centre, residuary powers in Centre, appointment of Governor by Centre

8. Features borrowed from Australian Constitution

Concurrent List, freedom of trade, commerce and inter-course, and joint sitting of the two Houses of Parliament.

Remember this Trick:

We know that India and Australia has very poor ties, so remember like this -

Currently, there is a need for India and Australia to **jointly sit together** and make agreement to **improve their trade and commerce ties**.

Concurrently → we need India and Australia → Joint Sitting → to improve trade and commerce, intercourse

The below ones are easy and try to by heart them -

9. Features borrowed from France

French Constitution Republic and the ideals of liberty, equality and fraternity in the Preamble.

10. Soviet Constitution

(USSR, now Russia)

Fundamental duties and the ideal of justice (social, economic and political) in the Preamble.

11. Features borrowed from South Africa:

Procedure for amendment of the Constitution and election of members of Rajya Sabha.